

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF BYVSHEV AND OTHERS v. RUSSIA

(Applications nos. 45041/17 and 23 others –
see appended list)

JUDGMENT

STRASBOURG

2 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Byvshev and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 February 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

6. The applicants complained principally of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention.

7. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57,

20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

8. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion of domestic remedies (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017) and having due regard to the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili* v. Georgia (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of the complaints in the present case.

9. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, concerning unlawful deprivation of liberty).

IV. REMAINING COMPLAINTS

11. As regards other complaints under Article 6 of the Convention about the administrative-offence proceedings, submitted by some applicants, the Court, having reached the conclusion about the lack of impartiality of the tribunal under Article 6 of the Convention (see paragraph 9 above), does not consider it necessary to examine them separately.

12. Furthermore, some applicants also raised other complaints under various Articles of the Convention.

13. The Court has examined the applications and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

14. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine separately further complaints under Article 6 of the Convention raised by some applicants about the administrative-offence proceedings and *declares* the remainder of the applications inadmissible;

3. *Holds* that these complaints disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

6. *Dismisses* the remainder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 2 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	45041/17 02/06/2017	**Valeriy Vladimirovich BYVSHEV** 1979	Golub Taras Yuryevich Lobnya	suspension of the driving licence for 1 year	02/12/2016, Moscow City Court		1,000
2.	5848/19 26/12/2018	**Yelizaveta Radikovna TIMOMEYEVA** 1995	Lepekhin Andrey Gennadyevich Chelyabinsk	administrative fine of RUB 10,000	25/10/2018, Chelyabinsk Regional Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's administrative arrest and conviction for having participated in an unauthorised public event (*Frumkin v. Russia*, no. 74568/12, §§ 93-142, 5 January 2016; *Navalnyy and Yashin v. Russia*, no. 76204/11, §§ 49-75, 4 December 2014). Demonstration against the pension reform on 09/09/2018. Conviction under Article 20.2 § 5 of CAO, administrative fine of RUB 10,000. Final decision: 25/10/2018, Chelyabinsk Regional Court.	3,900
3.	6027/19 25/12/2018	**Andrey Yuryevich YELISEYEV** 1992	Lepekhin Andrey Gennadyevich Chelyabinsk	administrative fine of RUB 5,000	17/10/2018, Chelyabinsk Regional Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's administrative arrest and conviction for having participated in an unauthorised public event. Demonstration against the pension reform on 09/09/2018. Conviction under Article 20.2 § 5 of CAO, administrative fine of RUB 5,000. Final decision: 17/10/2018, Chelyabinsk Regional Court.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	6036/19 25/12/2018	**Anisa Gabdullovna AGEYEVA** 1957	Lepekhin Andrey Gennadyevich Chelyabinsk	administrative fine of RUB 10,000	10/10/2018, Chelyabinsk Regional Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's administrative arrest and conviction for having participated in an unauthorised public event Demonstration against the pension reform on 09/09/2018. Conviction under Article 20.2 § 5 of CAO, administrative fine of RUB 10,000. Final decision: 10/10/2018, Chelyabinsk Regional Court.	3,900
5.	6038/19 26/12/2018	**Dzheyson Aleks FORD** 1995	Lepekhin Andrey Gennadyevich Chelyabinsk	administrative fine of RUB 10,000	01/11/2018, Chelyabinsk Regional Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's administrative arrest and conviction for having participated in an unauthorised public event Demonstration against the pension reform on 09/09/2018. Conviction under Article 20.2 § 5 of CAO, administrative fine of RUB 10,000. Final decision: 01/11/2018, Chelyabinsk Regional Court.	3,900
6.	13451/19 12/02/2019	**Yana Aleksandrovna IVANOVA** 1990	Peredruk Aleksandr Dmitriyevich St Petersburg	administrative fine of RUB 10,000	08/11/2018, St Petersburg City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - namely the applicant's administrative arrest and conviction for having participated in an unauthorised public event Demonstration against the pension reform on 09/09/2018. Conviction under Article 20.2 § 6.1. of CAO, administrative fine of RUB 10,000. Final decision: 08/11/2018, St Petersburg City Court, Art. 5 (1) - unlawful detention - Detention from 09/09/2019 to 11/09/2018. Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others* v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019); detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others* v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	3,900

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7.	17976/19 20/03/2019	**Stanislav Vladimirovich NADYRSHIN** 1992		administrative detention of 10 days	20/09/2018, St Petersburg City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - namely the applicant's administrative arrest and conviction for having participated in an unauthorised public event. Demonstration against the pension reform on 09/09/2018. Conviction under Article 20.2 § 6.1. of CAO, administrative detention of 10 days. Final decision: 20/09/2018, St Petersburg City Court.	3,900
8.	21044/19 03/04/2019	**Petr Sergeyevich DONDUKOV** 1983	Sholokhov Igor Nikolayevich Kazan	administrative fine of RUB 10,000	12/11/2018, Supreme Court of the Buryatiya Republic	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - namely the applicant's administrative arrest and conviction for having participated in an unauthorised public event. Demonstration against the pension reform on 09/09/2018. Conviction under Article 20.2 § 5 of CAO, administrative fine of RUB 10,000. Final decision: 12/11/2018, Supreme Court of the Buryatiya Republic.	3,900
9.	21836/19 12/04/2019	**Margarita Yuryevna KULIYEVA** 1994	Sholokhov Igor Nikolayevich Kazan	administrative fine of RUB 5,000	25/10/2018, Supreme Court of the Buryatiya Republic	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - namely the applicant's administrative arrest and conviction for having participated in an unauthorised public event. - Manifestation against the pension reform in Ulan-Ude on 09/09/2018; Article 20.2 § 5 of CAO, administrative fine of RUB 5,000; Final decision: Supreme Court of the Buryatiya Republic, 25/10/2018.	3,900
10.	23132/19 12/04/2019	**Suren Vyacheslavovich BUBEYEV** 1984	Sholokhov Igor Nikolayevich Kazan	administrative fine of RUB 10,000	29/10/2018, Supreme Court of the Buryatiya Republic	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - namely the applicant's administrative arrest and conviction for having participated in an unauthorised public event. Manifestation against the pension reform, Pobedy Memorial, Ulan-Ude on 09/09/2018; Article 20.2 § 5 of CAO, fine of RUB 10,000; Final decision: Supreme Court of the Buryatiya Republic, 29/10/2018.	3,900

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11.	24863/19 29/04/2019	**Svetlana Vladimirovna STEPAKINA** 1999	Fedotova Yuliya Yevgenyevna Yekaterinburg	administrative fine of RUB 10,000	26/02/2019, Sverdlovsk Regional Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - namely the applicant's administrative arrest and conviction for having participated in an unauthorised public event. - Manifestation against the pension reform in Yekaterinburg on 09/09/2018; Article 20.2 § 5 of CAO, administrative fine of RUB 10,000; Final decision: Sverdlovsk Regional Court, 26/02/2019.	3,900
12.	14537/20 02/03/2020	**Kseniya Dmitriyevna NIKOLAYEVA** 1980	Yelanchik Oleg Aleksandrovich Moscow	administrative fine of RUB 10,000	02/09/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of Ivan Golunov in Moscow on 12/06/2019; Article 20.2 § 6.1 of CAO; fine of RUB 10,000, Final decision: Moscow City Court 02/09/2019.	3,900
13.	15039/20 12/03/2020	**Sergey Aleksandrovich DUBOVIS** 1982	Vasilyev Nikolay Vladimirovich Moscow	administrative fine of RUB 15,000	16/09/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 15 000 / Final decision: Moscow City Court on 16/09/2019	3,900
14.	18002/20 23/03/2020	**Rafael Rushanovich MUNNIBAYEV** 1977	Memorial Human Rights Centre Moscow	administrative fine of RUB 10,000	16/10/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 16/10/2019.	3,900

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15.	18006/20 23/03/2020	**Ilya Sergeyevich KIRYUSHKIN** 1987	Memorial Human Rights Centre Moscow	administrative fine of RUB 10,000	20/09/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 20/09/2019.	3,900
16.	32073/20 23/07/2020	**Vladislav Maksimovich MINENKOV** 1996	Memorial Human Rights Centre Moscow	administrative fine of RUB 10,000	18/12/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Unlawful detention on 03/08/2019, detention in excess of 3 hours (see *Denisenko v. Russia* (dec.) [Committee], no. 18322/05, 14 February 2017); Arrest during the manifestation for the purpose of drafting the administrative offence report, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 18/12/2019.	3,900

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17.	32115/20 23/07/2020	**Anatoliy Sergeyevich SHISHKIN** 1984	Memorial Human Rights Centre Moscow	administrative fine of RUB 10,000	08/11/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Detention in excess of 3 hours for the purpose of drawing up a record of administrative arrest on 03/08/2019, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 08/11/2019.	3,900
18.	33896/20 31/07/2020	**Anastasiya Vadimovna KONDRATYEVA** 1983	Memorial Human Rights Centre Moscow	administrative fine of RUB 10,000	10/02/2020, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 10/02/2020.	3,900
19.	34301/20 16/07/2020	**Tatyana Pavlovna SOKOLOVA** 1993	Memorial Human Rights Centre Moscow	administrative fine of RUB 15,000	16/10/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Arrest and escorting to the police office for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours on 03/08/2019, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 15,000 / Final decision: Moscow City Court on 16/10/2019.	3,900

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20.	36394/20 29/07/2020	**Kirill Aleksandrovich ASTRAKHANTSEV** 1987		administrative fine of RUB 10,000	06/11/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Unlawful detention on 03/08/2019, issue raised on appeal, detention in excess of 3 hours, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 06/11/2019.	3,900
21.	37586/20 18/08/2020	**Ruslan Magomedovich MEDZHIDOV** 1991	Memorial Human Rights Centre Moscow	administrative fine of RUB 10,000	20/01/2020, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Detention in excess of 3 hours for the purpose of drawing up a record of administrative arrest on 03/08/2019, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 20/01/2020.	3,900
22.	37963/20 08/07/2020	**Aleksey Erastovich KOSTYUK** 1992	Kostanova Anastasiya Yuryevna Moscow	administrative fine of RUB 12,000	08/10/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 2 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 12,000 / Final decision: Moscow City Court on 08/10/2019.	3,900

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23.	40553/20 28/08/2020	**Ioann Leonidovich RAZGON** 1999	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	administrative fine of RUB 10,000	28/11/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - Arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence; no record of administrative detention, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma / administrative fine of RUB 10,000 / Final decision: Moscow City Court on 28/11/2019.	3,900
24.	40778/20 17/08/2020	**Maksim Andreyevich OREL** 1997	Levenberg Yeva Viktorovna Moscow	administrative fine of RUB 10,000	18/11/2019 Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under Article 20.2 § 5 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ Final decision: Moscow City Court on 18/11/2019.	3,900

[1] Plus any tax that may be chargeable to the applicants.